

Joanne Hanford v. American Honda Motor Co., Inc., 25CV-0089

Hearing: Motion to Compel Further Responses to Request for Production of Documents

Date: June 24, 2026

Joanne Hanford (Plaintiff) filed this lemon law action on February 13, 2025, against American Honda Motor Co., Inc. (Honda). The dispute concerns Plaintiff's purchase of a 2023 Honda Accord (the Subject Vehicle) on April 26, 2023. The complaint alleges the vehicle contained or developed defects in its steering, suspension, engine, and electrical systems during the warranty period. (Cmp., ¶ 10.)

On July 21, 2025, Plaintiff served Request for Production of Documents, Set One (RFP) on Honda. (Gopstein Dec., ¶ 13.) Honda responded on September 24, 2025, pursuant to an extension granted by Plaintiff's counsel. (Bell Dec., ¶ 6.) The parties executed a stipulated protective order in December 2025. Plaintiff now moves to compel further responses to RFPs: 8, 16, 23-28, and 30-31. Honda opposes the motion. The Court grants the motion in part.

I. MEET AND CONFER

A motion to compel further response to a demand for inspection shall be accompanied by a meet and confer declaration under Code of Civil Procedure section 2016.040. (Code Civ. Proc., § 2031.310, subd. (b)(2).) A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion. (Code Civ. Proc., § 2016.040, subd. (a).)

The parties' meet and confer communications consisted of two telephone conversations on November 7, 2025, and January 6, 2025. (Gopstein Dec., ¶¶ 20, 21.) The Court finds the parties' meet and confer efforts sufficient.

II. REQUEST FOR PRODUCTION OF DOCUMENTS

The ten RFPs (Nos. 8, 16, 23-28, and 30-31) at issue are grouped into the following category of documents: "(1) Plaintiff's own vehicle (Request Nos. 1-14); (2) Defendant's policies and procedures for handling Song-Beverly Consumer Warranty Act Cases (Request Nos. 15-22); (3) Defendant's warranty policy and the procedure used for handling warranty issues (Request Nos. 23-29); and (4) information regarding similar customer complaints in vehicles of the same year, make, and model as the Subject Vehicle (Request Nos. 30-31)." (Pl.'s Sep. Stmt, p. 2, ll. 8-12.)

The RFPs at issue are:

- RFP 8: Produce all DOCUMENTS, including recalls, technical service bulletins, and dealer advisories that were issued for the SUBJECT VEHICLE. [This request requires that the responding party produce the entire document.]

A production that only lists the name, number, and/or title of the document will not be responsive to this request].

- RFP 16: All DOCUMENTS which evidence, describe, refer, or relate to YOUR Call Center Policies and Procedures for escalating customer complaints relating to any defects present in their vehicle.
- RFP 23: Any DOCUMENT which refers or relate to YOUR Warranty Policy and Procedure Manuals provided to YOUR authorized repair facilities with respect to how to determine whether repairs should be covered under warranty from 2020 to the present.
- RFP 24: Any DOCUMENT which refers or relate to YOUR Warranty Policy and Procedure Manuals provided to YOUR authorized repair facilities with respect to whether repairs should be covered under warranty as “goodwill” from 2020 to the present.
- RFP 25: Any DOCUMENT which refers or relate to YOUR Warranty Policy and Procedure Manuals provided to YOUR authorized repair facilities with respect to repeated repair visits for similar complaints by the consumer from 2020 to the present.
- RFP 26: Any DOCUMENT which refers or relate to YOUR Warranty Policy and Procedure Manuals provided to YOUR authorized repair facilities on what type of repairs require approval by YOU in order to cover the repair under warranty from 2020 to the present.
- RFP 27: Any DOCUMENT which refers or relate to YOUR Warranty Policy and Procedure Manuals provided to YOUR authorized repair facilities on the length for test drives on certain customer complaints to be covered under warranty from 2020 to the present.
- RFP 28: Any DOCUMENT which refers or relate to YOUR Warranty Policy and Procedure Manuals provided to YOUR authorized repair facilities on what type of repairs will not be reimbursed by YOU as warranty repairs from 2020 to the present.
- RFP 30: All DOCUMENTS, in the form of a list or compilation, of other Customer Complaints in YOUR electronically stored information of database(s) that are SUBSTANTIALLY SIMILAR to complaints made by Plaintiff with respect to the SUBJECT VEHICLE in other 2023 Honda Accord vehicles.

“SUBSTANTIALLY SIMILAR” shall mean similar customer complaint that would be the same nature of the reported system, malfunction, trouble code, Technical Service Bulletin Recommendation, dashboard indicator light, or

other manifestation of a repair problem, as description listed in any warranty summary or repair order for the SUBJECT VEHICLE. [The customer complaints in this matter can be found in Defendant's warranty history/summary and within the line items of the repair orders created at Defendant's authorized repair facility. If YOU are having issues determining Plaintiff's Complaints, Plaintiff is willing to meet and confer and list out the specific complaints and the language used to describe them. This should not include any routine or scheduled maintenance items.]

- RFP 31: All DOCUMENTS that refer to, reflect, or relate to any Field Service Action issued, or in the process of being issued, in response to complaints experienced by Plaintiff as described in Defendant's warranty history/summary and within the line items of the repair orders created at Defendant's authorized repair facility.

(Gopstein Dec., Ex. 3.)

The RFPs define the Subject Vehicle as the 2023 Honda Accord; Vehicle Identification Number 1HGCY2F69PA001182. (Gopstein Dec., Ex. 3.)

A. Legal Standard

"Unless otherwise limited by order of the court ... any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved... if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence." (Code Civ. Proc., § 2017.010.)

The Court first must consider whether Plaintiffs have shown good cause for production of further documents, and if such good cause is established, then the burden is on Defendant to justify its objections. (*Kirkland v. Superior Court* (2002) 95 Cal.App.4th 92, 98; Code Civ. Proc., § 2031.310, subd. (b)(1).)

B. Discussion

Plaintiff seeks an order compelling further responses to the propounded discovery. Plaintiff argues Honda has served unjustified boilerplate objections and inadequate, non-Code-compliant responses to document requests that are directly relevant to Plaintiff's claims. Plaintiff contends the requested documents are essential to prove willful noncompliance with the Song-Beverly Consumer Warranty Act (supporting civil penalties), and to show the Subject Vehicle's nonconformities, Honda's knowledge of the defects, and its inability to repair them.

Honda opposes the motion on the grounds that Plaintiff disregards Honda's substantive responses, relies on arguments recycled from unrelated litigation, challenges objections Honda did not assert, and seeks to compel production under Request for Production No. 30 of broad "other-vehicle" complaint data that Honda contends is unrelated to Plaintiff's claims concerning the Subject Vehicle.

1. RFP No. 16

As to RFP No. 16, Honda contends that it agreed to produce all documents in the requested category in full, including guideline documents titled “Lemon Law Inquiries,” “Early Warning,” and “Attorney Involved,” and represents that nothing was withheld on the basis of its objections. Honda asserts it has fully complied with Code of Civil Procedure section 2031.220. Plaintiff’s counsel claims, however, that additional documents are being withheld responsive to Plaintiff’s RFP No. 16. Honda argues Plaintiff’s contention is unavailing because Plaintiff has offered no declaration, submitted no exhibit, and made no specific factual showing of any kind.

“Under [Code of Civil Procedure section 2031.220], a statement that the party will comply with a particular demand must state both of the following: [¶] The production, inspection, copying, testing, or sampling, and related activity demanded, will be allowed in whole or in part. [¶] All documents or things in a demanded category that are in the possession, custody, or control of the responding party and to which no objection is made will be produced. (Cal. Civil Discovery Practice (Cont.Ed.Bar 4th ed. 2026) § 8.77.)

The Court finds that Honda has satisfactorily responded to RFP No. 16. No further response is required to this RFP.

2. RFP Nos. 8 and 31

“A representation of inability to comply with the particular demand for inspection, copying, testing, or sampling shall affirm that a diligent search and a reasonable inquiry has been made in an effort to comply with that demand. This statement shall also specify whether the inability to comply is because the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party. The statement shall set forth the name and address of any natural person or organization known or believed by that party to have possession, custody, or control of that item or category of item.” (Code Civ. Proc., § 2031.230.)

The Court finds that Honda’s responses to RFPs 8 and 31 satisfy California Code of Civil Procedure section 2031.230 because Honda represents that, after a diligent search and reasonable inquiry, no responsive documents exist or have ever existed—specifically, as to RFP No. 8, no documents were specifically issued for the Subject Vehicle, and as to RFP No. 31, no Field Service Actions exist. No further responses are required to these RFPs.

3. RFP Nos. 23-28, and 30

RFP Nos. 23–28 seek documents concerning Honda’s written warranties and related policies and procedures, including what is covered, how coverage determinations are made, and any training regarding warranty coverage. The requests also seek documents regarding Honda’s procedures for handling customer complaints and its compliance with any statutory duties to repurchase or replace defective vehicles under the Song-Beverly Act. Plaintiff contends this discovery is relevant to her civil penalties claim because it may show Honda’s awareness of a widespread defect that it was unable to repair. Plaintiff additionally contends Honda agreed to produce Sections 2, 3, 5, and 9,

but is withholding the remaining 12 sections without identifying their titles or describing their contents, preventing Plaintiff from assessing whether withholding these documents is proper.

RFP No. 30 seeks documents concerning customer complaints that are substantially similar to complaints made by Plaintiff regarding the Subject Vehicle. Plaintiff argues this discovery is relevant to willfulness and to whether Honda had prior knowledge of the alleged defects.

“Under section 1794, subdivision (c), the court may impose a civil penalty up to two times the amount of actual damages if the buyer proves the manufacturer's failure to comply was willful. [Citation.]” (*Jensen v. BMW of North America, Inc.* (1995) 35 Cal.App.4th 112, 136, disapproved on other grounds by *Rodriguez v. FCA US, LLC* (2024) 17 Cal.5th 189, 205.) “Among the factors to be considered by the jury are whether: (1) the manufacturer knew the vehicle had not been repaired within a reasonable period or after a reasonable number of attempts, and (2) whether the manufacturer had a written policy on the requirement to repair or replace. [Citation.]” (*Ibid.*)

The Court finds good cause for production of the documents in the subject RFPs. Plaintiff has shown the relevancy of the information sought. Additionally, evidence that other customers made similar complaints may be reasonably calculated to lead to discovery of potentially admissible evidence, such as whether a defect exists, or whether the manufacturer had notice of a defective condition. However, the Court shall limit the discovery requests to customer complaints regarding 2023 Honda Accords purchased in California.

III. MONETARY SANCTIONS

Plaintiff requests monetary sanctions in the total amount of \$3,615 against Honda.¹ (Gopstein Dec., ¶¶ 25-31, Code Civ. Proc., § 2031.310, subd. (h).) This represents nine hours at \$395 per hour plus the \$60 filing fee. The Court finds these fees to be reasonable and just. Plaintiff is awarded \$3,615.00 in monetary sanctions against Honda.

ORDER

Plaintiff's motion to compel further responses is granted in part. Honda shall provide further responses and production of responsive documents to RFP Nos. 23-28, and 30, within thirty (30) days of this ruling. No further responses are required to RFP Nos. 8, 16, and 31. Plaintiff shall serve notice.

The Court grants Plaintiff's request for sanctions. The Court awards monetary sanctions to Plaintiff in the amount of \$3,615 against Honda, to be paid within thirty (30) days of notice of this ruling.

¹ Plaintiff's counsel's declaration also requests sanctions against Honda's counsel of record. (Gopstein Dec., ¶ 29.) However, Plaintiff's notice of motion only states that sanctions are sought against Honda, and not its counsel.